

Gaya Prasad v. State of U.P. And 3 Others

Allahabad High Court · Division Bench · 11 November 2019 · Writ-C No. 36090 of 2019 (All.) · WRIT - C No. 36090 of 2019 · **Writ disposed; EE to decide pending application; recovery stayed four weeks.**

HEADNOTE

Without deciding a bill-accuracy dispute or the Clause 6.5(b) alternative-remedy objection, the High Court disposed of a writ against an electricity recovery citation by directing the Executive Engineer to decide the consumer's pending representation within four weeks and keeping recovery in abeyance for that period.

FACTUAL SUMMARY

Gaya Prasad challenged a 22 August 2019 recovery citation for electricity dues, seeking a corrected bill after adjustment of amounts already paid and a restraint on coercive recovery. The distribution licensee's counsel objected that a billing-accuracy dispute lay under Clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The petitioner replied that a recovery certificate had already issued, and that his representation dated 29 August 2019 before the Executive Engineer, Electricity Distribution Division Chail, District Kaushambi, remained undecided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

billing complaint; alternative remedy; recovery citation

HOLDING

On a writ seeking to quash an electricity recovery citation and to have bills corrected, where the licensee objects that a bill-accuracy dispute is remediable under Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 and the consumer already has a representation pending before the Executive Engineer, the High Court may, without prejudice to merits, dispose of the petition by directing that officer to decide the representation within a fixed time and keep recovery in abeyance until then. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ACCURACY OF THE ELECTRICITY BILLS AND WHETHER THE RECOVERY CITATION DATED 22.8.2019 SHOULD BE QUASHED ON MERITS

Petition disposed without prejudice to merits; Executive Engineer directed to decide the pending application. ¶ 1

NOT DECIDED — WHETHER THE WRIT WAS NOT MAINTAINABLE BECAUSE OF THE STATUTORY ALTERNATIVE UNDER CLAUSE 6.5(B)

Preliminary objection noted; the Court declined to interfere at that stage rather than ruling on exclusivity of the Code remedy. ¶ 1